

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
HONORABLE MICHAEL L. MAU
1050 Mission Road, South San Francisco
Department 20, Courtroom L
September 4, 2026 at 9:00 AM

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept20@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5120 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 8:50 am.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 161 576 6143 Password: 142907

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
9:00 AM	
Line 1	
22-CIV-00069	MARITA ZWEIFLER VS. ERNEST EGAN, ET AL

MARITA ZWEIFLER
ERNEST EGAN

PRO SE
JOEL M. WESTBROOK

Plaintiff/Cross-Defendant's Motion to Strike Cross-Complaint Pursuant to Code of Civil Procedure §§ 435 and 436

TENTATIVE RULING:

Plaintiff/Cross-Defendant Marita Zweifler's ("Zweifler") Motion to Strike Cross-Complaint is DENIED.

The motion is untimely. Zweifler was served on or about November 21, 2025, and then Zweifler filed an answer on January 29, 2026. The time to plead has thus long expired. Zweifler did not file the present motion to strike at the time of or in place of her Answer. The motion is untimely and is thus denied on that basis.

The motion is improper as well. A motion to strike must quote in full the portions sought to be stricken. See, CRC Rule 3.1322(a). Here, Zweifler does not quote any portion of the cross-complaint, but instead improperly seeks to strike the entirety of the cross-complaint. As part of the required meet and confer process which also did not happen here, Zweifler was required to "identify all of the specific allegations that it believes are subject to being stricken and identify with legal support the basis of the deficiencies." Code of Civil Procedure ("CCP") § 435.5(a)(1) (emphasis added). A motion to strike is not proper to attempt to strike an entire cross-complaint, largely on the basis that one disagrees with its allegations.

CCP Section 437 provides:

- (a) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.
- (b) Where the motion to strike is based on matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, such matter shall be specified in the notice of motion, or in the supporting points and authorities, except as the court may otherwise permit.

Zweifler's motion instead is based on improper evidentiary arguments. Zweifler contends that an email to TPA Project Finance on September 14, 2023 and a UCC-1 statement to be filed in Florida, are allegations that are "demonstrably false." Motion, pg. 4, lines 4-11. Zweifler then argues that she "has denied sending this email" and that she did not file the UCC-1 statement. Motion pg. 4, lines 17 & 28 In general, all Zweifler does is attack potential evidence, which are ultimately issues for trial. She fails to present a proper basis to strike that appears on the face of the challenged pleading as written. Thus, the motion is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 2

22-CIV-00069 MARITA ZWEIFLER VS. ERNEST EGAN, ET AL

MARITA ZWEIFLER
ERNEST EGAN

PRO SE
JOEL M. WESTBROOK

Plaintiff's Motion to Deem Requests for Admission Admitted; Request for Sanctions

TENTATIVE RULING:

Plaintiff Marita Zweifler's ("Zweifler") Motion to Deem Requests for Admission Admitted and Request for Sanctions are DENIED.

On April 14, 2026, Zweifler filed a special motion to strike (SLAPP) under Code of Civil Procedure ("CC") Section 425.16. In pertinent part, that code provides:

All discovery proceedings in the action shall be stayed upon the filing of a notice of motion made pursuant to this section. The stay of discovery shall remain in effect until notice of entry of the order ruling on the motion. The court, on noticed motion and for good cause shown, may order that specified discovery be conducted notwithstanding this subdivision.

CCP § 425.16(g)

There was no prior motion to open discovery after the SLAPP motion was filed. On April 22, 2026, Zweifler then served the Requests for Admissions ("RFA") that are at issue in this motion. Defense counsel attempted to convince Zweifler to withdraw this motion, but Zweifler never responded. Westbrook Decl., ¶ 10-11, Exh. D. The automatic stay on discovery is expressly written into the code, and it is indeed automatic and self-executing. *Britts v. Superior Court* (2006) 145 Cal.App.4th 1112, 1125. This Court had not issued a past Order to open discovery which is necessary under these circumstances for Zweifler to have served the RFA's, and if no response, to then move to compel/admit the RFA's. Defendant argues that "[t]his motion is one of four meritless motions that Zweifler has filed." The Court agrees that this motion is indeed meritless and it is DENIED. Because the motion fails, so fails her related request for sanctions.

Conversely, Defendant is entitled to some monetary sanctions, which were duly noticed in the opposition and attorney declaration. Opp., pg. 4-5, ¶ D; Westbrook Decl., ¶ 12-13. CCP Section 2023.030 provides:

To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process:

(a) The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses,

including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

CCP § 2023.030. See also, CCP § 2023.010; CCP §§ 2033.280 and 2033.290.

Defendant seeks sanctions for opposing this motion in a total of \$4,950.00, for 11 hours of claimed work at the hourly rate of \$450.00 per hour. Westbrook Decl., ¶ 12-13. The hourly rate is reasonable, but the time spent is not. The Court therefore only awards 6 hours or \$2,700.00 in sanctions against Zweifler, to be paid to Defense counsel within thirty (30) days of the Order after hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 3

22-CIV-00069 MARITA ZWEIFLER VS. ERNEST EGAN, ET AL

MARITA ZWEIFLER
ERNEST EGAN

PRO SE
JOEL M. WESTBROOK

Plaintiff's Motion to Vacate the November 14, 2025 Order Setting Aside Default Judgment

TENTATIVE RULING:

Plaintiff Marita Zweifler's ("Zweifler") Motion to Vacate the November 14, 2025 Order Setting Aside Default Judgment is DENIED.

Plaintiff's only legal basis for this motion is under Code of Civil Procedure ("CCP") Section 473(d), which provides:

The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.
CCP § 473(d)

Plaintiff then goes on to re-argue the merits of the past motion to set aside default that was heard on November 14, 2025. At the time Zweifler was represented by attorney Nathaniel Kelly who filed a written opposition to the motion on October 31, 2025. In other words, the motion was fully briefed on both sides, the Court had issued its tentative ruling to grant, Mr. Kelly did not oppose the tentative and it was then adopted without argument. See, Minute Order 11/14/2025. In all respects, Zweifler's current motion is an untimely motion for reconsideration which is only allowed within 10 days after service of written notice of entry of an order. CCP § 1008(a). Here the Court filed and served the Order granting the motion to set aside default on December 2, 2025. See, Order and Affidavit of Service, 12/2/2025. Zweifler then filed this motion on July 14, 2026, some seven months too late. It is thus procedurally DENIED as improper and untimely.

On the merits, Zweifler also does not present any good cause for the Court to reconsider its prior ruling. Again, the prior motion was fully briefed and then adjudicated. There was no clerical mistake in its entry under CCP Section 473(d) that needs correction. Thus, substantively, the motion is also DENIED.

Defendant's request discretionary sanctions under CCP Section 1008(d), however, that section allows the Court the option to seek contempt proceedings with sanctions. Though the Court does agree that this motion is meritless, the Court does not find it contemptuous and therefore no sanctions are awarded.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 4

24-CIV-04638 RAMY KAUFLEDER EDEN VS. GRAND MARTCO, INC.,

RAMY KAUFLEDER EDEN
GRAND MARTCO, INC.,

JARRETT CHARO
DONALD J. DOWLING

Plaintiff's Motion for Settlement Approval

TENTATIVE RULING:

The Motion for Settlement Approval by Plaintiff Ramy Kaufler Eden ("Plaintiff") is continued for one week to September 11, 2026 at 9:00 a.m. for Plaintiff to cure the defects identified below. Due to the continuance, no appearances are needed on September 4, 2026.

The proof of service that is attached to the Notice of Motion and Motion for Settlement Approval, filed on February 23, 2026, is unsigned. The Motion is required to be served not only on Defendant, but also the Attorney General. (Cal. Code Regs, tit. 11, § 3008 [in a private Proposition 65 action, motion and supporting papers must be served on the California Attorney General at least forty-five days prior to the hearing on the motion]; Health and Safety Code, § 25249.7, subd. (f)(5) [plaintiff shall serve motion and all supporting papers on the Attorney General, who may appear and participate in a proceeding without intervening in the case].) Therefore, Plaintiff has not established proper service of this Motion. This defect can be cured by submitting a signed Proof of Service.

The Notice of Hearing also fails to provide the correct date and location of the hearing. At the time of filing, the hearing date on the Notice of Motion was changed from July 10, 2026 to September 4, 2026. The court's record does not reflect the filing or service of an amended notice. Further, the Notice of Hearing incorrectly provided the address for the Southern Branch courthouse in Redwood City. At the time Plaintiff filed this Motion, Department 20 was located at the Central Branch. On April 29, 2026, the court served counsel of record with a Notice of Hearing Location Change for the September 4, 2026 hearing stating that Department 20 is now located at the Northern Branch. The address for the Northern Branch is 1050 Mission Road, South San Francisco, CA 94080. Even if the court were to find that Defendant has notice of the date and location of the hearing as a result of service of the Notice of Hearing Location Change, Plaintiff has not shown the California Attorney General has notice of the correct date and location of the hearing. This defect can be cured by filing and serving an Amended Notice of Hearing on Continued Motion for Settlement Approval, with a signed Proof of Service for service on Defendant and on the Attorney General.

The Court waives an Order after Hearing, and instead the Minute Order will reflect this ruling.

9:00 AM

Line 5

24-CIV-05539 ERAY ERBAY VS. HUSEYIN TOSUN, ET AL

ERAY ERBAY
HUSEYN TOSUN

BRIAN M CARTER
SUSAN E. BISHOP

Cross-Complainants Motion to Quash the Deposition Subpoena for Production of Business Records Served on Bank of America and for Sanctions

TENTATIVE RULING:

For the reasons stated below, Cross-Complainants Huseyin and Sema Tosun’s Motion to Quash, filed March 25, 2026, which seeks an order quashing the Deposition Subpoena for Production of Business Records served on third party Bank of America on February 26, 2026, is GRANTED-in-part and DENIED-in-part. (Code Civ. Proc. § 1987.1)

The Tosuns’ March 25, 2026 Request for Judicial Notice (“RJN”) is GRANTED. (Evid. Code § 452(d).)

Background.

Zeyher Corporation (“Zeyher”) owns/owned a restaurant in San Carlos called Stamp Bar and Grill. From October 2021 to June 2023, Plaintiff Eray Erbay (“Plaintiff”) worked as a waiter for Zeyher at the restaurant. Plaintiff filed this case against the Tosun defendants, who were owners or co-owners of Zeyher, asserting wage and hour claims under the California Labor Code. In October 2024, the Tosun filed a Cross-Complaint (“XC”) against Muslum Caferoglu (“Caferoglu”) for Contractual Indemnification, Equitable Indemnification and Contribution. The XC alleges that Mr. Caferoglu managed the restaurant and is contractually obligated to indemnify the Tosuns for costs and fees that they incurred in defending Plaintiff Erbay’s lawsuit. In June 2024, Mr. Tosun and Mr. Caferoglu settled a dispute involving their respective ownership interests in Zeyher by way of a written Settlement Agreement, which included an indemnification clause stating:

Should any third party bring any claim against one of the Parties arising from the conduct of the other Party related to the operation of Stamp, the Party not named in the claim shall indemnify the other Party against whom the claim is made for 50% of all costs, including court costs and reasonable attorneys’ fees, incurred in the defense of such action unless such claim arises solely from acts or omissions over which only *one Party had exclusive control* in which circumstance the Party shall bear 100% of any liability arising therefrom.

(XC, ¶ 19 [emphasis added].)

Plaintiff Erbay's claims against the Tosuns have resolved. The only remaining claims in this case are the XC's (the Tosuns') indemnification claims against Mr. Caferoglu.

In mid-2025, Mr. Caferoglu served a subpoena on third party Bank of America, which sought essentially all documents relating to Zeyher Corporation's bank accounts. The Tosuns moved to quash the subpoena, arguing that it was overbroad and violated privacy rights. The Court agreed and granted the motion to quash. (See Feb. 10, 2026 Order.) On Feb. 26, 2026, Mr. Caferoglu served a second subpoena on Bank of America (the subject of this motion), again seeking documents relating to Zeyher Corporation. On March 25, 2026, the Tosuns filed the present moved to quash.

The Feb. 26, 2026 subpoena seeks the following documents:

... RECORDS FOR THE PERIOD FROM JANUARY 1, 2021 TO DECEMBER 31, 2023:

1. ALL WRITINGS AS DEFINED BY CAL. EVIDENCE CODE SECTION 250 ("WRITINGS"), SUFFICIENT TO SHOW WHETHER CROSS-DEFENDANT MUSLUM CAFEROGLU ("CAFEROGLU") WAS AN AUTHORIZED SIGNER, ACCOUNT HOLDER, AGENT, OR WAS OTHERWISE GRANTED AUTHORITY TO ACCESS, DRAFT CHECKS FROM, OR INITIATE PAYMENTS FROM ANY BANK ACCOUNT(S) HELD BY ZEYHER CORPORATION. A CALIFORNIA CORPORATION WITH TAXPAYER IDENTIFICATION NUMBER S3-3696943 ("ZEYHER"), INCLUDING BUT NOT LIMITED TO SIGNATURE CARDS, ACCOUNT AUTHORIZATION FORMS, ACCOUNT OPENING DOCUMENTS, ACCOUNT MODIFICATION RECORDS, OR RESOLUTIONS IDENTIFYING AUTHORIZED USERS.
 2. ALL WRITINGS SUFFICIENT TO SHOW PAYROLL CHECKS, CHECK IMAGES, OR CHECK RECORDS DRAWN ON ANY BANK ACCOUNT(S) HELD BY ZEYHER THAT REFLECT CAFEROGLU AS SIGNER, MAKER, OR AUTHORIZED DRAFTER, INCLUDING THE FACE OF THE CHECK AND ENDORSEMENT AREA ONLY; PROVIDED THAT THE BANK SHALL REDACT ACCOUNT BALANCES, PAYEE INFORMATION, AND THIRD-PARTY INFORMATION.
 3. ALL WRITINGS SUFFICIENT TO SHOW PAYROLL-RELATED DEPOSITS OR WITHDRAWALS IDENTIFYING CAFEROGLU AS THE INITIATING PARTY, SIGNATORY, OR AUTHORIZED USER IN CONNECTION WITH ANY BANK ACCOUNT(S) HELD BY ZEYHER, PROVIDED THAT THE BANK SHALL REDACT ALL UNRELATED TRANSACTION DETAILS, ACCOUNT BALANCES, AND THIRD-PARTY INFORMATION.
 4. ALL WRITINGS SUFFICIENT TO SHOW COMMUNICATIONS BETWEEN BANK OF AMERICA AND CAFEROGLU RELATING SOLELY TO ACCOUNT AUTHORITY, SIGNING PRIVILEGES, OR ACCESS RIGHTS FOR BANK ACCOUNT(S) HELD BY ZEYHER, PROVIDED THAT THE BANK SHALL REDACT ALL UNRELATED
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TRANSACTION DETAILS, ACCOUNT BALANCES, AND THIRD-PARTY INFORMATION.

5. ALL WRITINGS SUFFICIENT TO IDENTIFY THE MASTER USER OR ACCOUNT ADMINISTRATOR FOR THE ONLINE BANKING AND PAYROLL PORTALS OF ANY ACCOUNTS HELD BY ZEYHER, INCLUDING RECORDS SHOWING WHICH INDIVIDUAL(S) HAD AUTHORITY TO ADD, REMOVE, OR RESTRICT THE ACCESS RIGHTS OF OTHER USERS.

6. ALL WRITINGS SUFFICIENT TO IDENTIFY THE MASTER USER, ACCOUNT ADMINISTRATOR, AND/OR INDIVIDUAL(S) HELD OUT TO THE BANK AS HAVING THE PRIMARY AUTHORITY TO GRANT, REVOKE, OR LIMIT THE DIGITAL BANKING ACCESS AND PAYROLL-AUTHORIZATION PRIVILEGES OF OTHER USERS FOR ANY ACCOUNT HELD BY ZEYHER. THIS INCLUDES BUT IS NOT LIMITED TO ANY "KNOW YOUR CUSTOMER" (KYC) PROFILES OR CORPORATE RESOLUTIONS IDENTIFYING THE PRIMARY OFFICERS OF THE ACCOUNT.

7. ALL WRITINGS SUFFICIENT TO SHOW THE ELECTRONIC AUDIT, TRAIL, AUTHORIZATION LOGS, AND/OR DIGITAL SIGNATURE HISTORY FOR EVERY PAYMENT, ACH TRANSFER, OR CHECK ISSUED TO ERAY ERBAY. DOCUMENTS SHOULD BE LIMITED TO SHOWING WHICH SPECIFIC USER INITIATED AND GAVE "FINAL APPROVAL" FOR EACH PAYMENT.

8. ALL WRITINGS REFLECTING ANY MONETARY THRESHOLDS OR DUAL-SIGNATURE REQUIREMENTS IMPOSED BY ZEYHER OR THE BANK.

9. ALL WRITINGS REFLECTING ANY MONETARY THRESHOLDS, DUAL-SIGNATURE REQUIREMENTS, AND/OR INTERNAL BANK RESTRICTIONS THAT PREVENTED CAFEROGLU FROM UNILATERALLY WITHDRAWING FUNDS, SHIFTING CAPITAL, OR ISSUING PAYROLL WITHOUT THE SECONDARY APPROVAL OR CO-SIGNATURE OF ANOTHER APPROVED USER.

10. ALL WRITINGS SUFFICIENT TO IDENTIFY THE AUTHORIZED SIGNER(S) WHO AUTHORIZED THE CLOSING OF EACH ACCOUNT HELD BY ZEYHER.

11. ALL WRITINGS SUFFICIENT TO IDENTIFY THE AUTHORIZED SIGNER(S) WHO AUTHORIZED THE DISBURSEMENT OF FUNDS PRIOR TO THE CLOSING OF EACH ACCOUNT HELD BY ZEYHER.

12. ALL WRITINGS SUFFICIENT TO IDENTIFY THE PERSON(S) WHO RECEIVED THE DISBURSEMENT OF ALL FINAL FUNDS AT THE CLOSING OF EACH ACCOUNT HELD BY ZEYHER.

13. ALL WRITINGS SUFFICIENT TO IDENTIFY ANY CREDITS, FUNDS, OR ACH DEPOSITS RECEIVED FROM THE INTERNAL REVENUE SERVICE (IRS) OR U.S.

TREASURY IDENTIFIED AS EMPLOYEE RETENTION TAX CREDIT (ERTC) PAYMENTS. THIS INCLUDES ANY COMMUNICATIONS BETWEEN THE BANK AND ZEYHER (OR ITS AUTHORIZED OFFICERS) REGARDING THE STATUS, RECEIPT, OR DISTRIBUTION OF THESE SPECIFIC FUNDS, INTENDED TO SHOW WHICH INDIVIDUAL EXERCISED CONTROL OVER THESE TAX-RELATED ASSETS.

The parties never discussed how to narrow the subpoena / Improper meet and confer.

Where a subpoena is claimed to be overbroad, the Court expects the parties will meet and confer in good faith to discuss ways to narrow the subpoena. The meet and confer was inadequate.

During the meet and confer, Mr. Caferoglu’s counsel suggested discussing ways to narrow the subpoena, but never put forth any proposals as to how it could be narrowed. Caferoglu’s Opposition brief argues that at a minimum, the Court should narrow the subpoena. But Caferoglu offers few ideas as to how to narrow it—apparently leaving that issue to the Court to figure out.

The Tosuns, conversely, showed virtually no interest in meeting and confer; instead, they took the position that the subpoena must be quashed in its entirety. (Aug. 24, 2026 Salameh Decl., ¶¶ 2-9.) After being served with the subpoena on Feb. 26, 2026, instead of discussing it with Caferoglu’s counsel, they waited nearly a month before responding, and then shortly before the production date, demanded that the subpoena be withdrawn in its entirety.

One way to resolve a dispute over an overbroad subpoena is via good faith discussion and stipulation. For example, if Mr. Caferoglu is seeking Bank of America documents for the purpose of establishing facts that the Tosuns know to be true, the Tosuns could propose stipulating to that fact (or those facts) in exchange for withdrawal of the subpoena. But we’ll never know whether any agreement might have been reached, because no genuine discussion took place. Counsel for both parties are warned about the inadequate meet and confer.

The Tosuns have placed at least some of the requested documents directly at issue.

The indemnity dispute centers on the Settlement Agreement’s language regarding whether either Mr. Tosun or Mr. Caferoglu had “exclusive control” over the subject matter of Erbay’s lawsuit. (XC, ¶ 19.) The Tosuns have filed a motion for summary adjudication (“MSA”), in which they argue that Mr. Tosun and Mr. Caferoglu “shared operational control” of Stamp Bar & Grill. (April 20, 2026 Notice of MSA.) The Tosuns’ Separate Statement supporting their MSA references these facts as to Caferoglu:

UMF 7. Caferoglu was responsible for ... administering payroll.

UMF 8. Caferoglu remained authorized to issue checks on Zeyher’s behalf, and his signature appears on numerous employee paychecks—including checks to Mr. Erbay—as well as several vendor payments.

Thus, the Tosuns have placed at least some of the requested Bank of America documents directly at issue, and they have suggested no alternative means of Mr. Caferoglu obtaining such evidence.

Governing law.

Discovery rights are generally very broad. (Code Civ. Proc., § 2017.010.) Doubts are to discoverability are generally resolved in favor of permitting discovery. (*Colonial Life & Accident Ins. Co. v. Sup. Ct.* (1982) 31 Cal.3d 785, 790.) But where privacy rights are implicated, the broad relevancy standard is not enough; the party seeking the discovery must show a particularized need for the information and direct relevance. (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 859-862.) The court then balances the requesting party's need for the information against the privacy concerns. (*Id.*) "Directly relevant" to a claim or defense means it is "essential to the fair resolution of the lawsuit." (*Id.* at 850.)

The Court narrows the subpoena to the time-period from Oct. 2021 through June 2023 (Erbay's period of employment).

The subpoena seeks documents "FOR THE PERIOD FROM JANUARY 1, 2021, TO DECEMBER 31, 2023." This time-period seems overbroad. Plaintiff Erbay alleged that he was employed from Oct. 2021 - June 2023. (Complt, ¶ 6.) His period of employment appears to be the relevant time-period. Mr. Caferoglu provides no explanation of why the subpoena seeks documents outside Erbay's period of employment. Thus, the Court will limit the subpoena to the time-period from Oct. 2021 through June 2023.

The motion to quash is GRANTED in part and DENIED in part as to Request Nos. 1-9.

The subpoena requests production of 13 categories of records, largely directed at a particular issue: who had authority and actual control over Zeyher's bank accounts, payroll, payments, and related financial activity? The indemnity dispute makes control over the restaurant and payments to employees highly/directly relevant. Under the XC, ¶ 19, control is a central issue. Plaintiff's lawsuit arose from employment/payroll conduct at the restaurant. Issues such as who could sign checks; who administered payroll; who could initiate and/or approve payments; who had online banking authority; whether dual-authorization was required; who authorized payments to employees, etc.—all appear to be directly relevant, because they go to the issue of whether Erbay's claims arose from conduct over which one party had *exclusive control*. The Tosuns' MSA makes the subpoena particularly defensible. The MSA asks the Court to find that Mr. Caferoglu had operational control and authority over payroll and checks. Yet the Tosuns simultaneously argue that Mr. Caferoglu cannot obtain the banking records that would establish (or undermine) that claim. The Tosuns' MSA itself characterizes these issues as "material" to the disposition of the MSA.

Request Nos. 1-9 appear to seek directly relevant documents, and it appears that Caferoglu has no alternative means of obtaining this information. The Court finds that Caferoglu's need for this information outweighs privacy concerns. However, the requests currently are still overly broad.

Redactions may also be necessary. For any/all documents produced by Bank of America, employee names, addresses, SSNs, account numbers, balances, and unrelated third party information shall be redacted prior to production.

The Court narrows each request or confirms production as follows for each numbered category:

1. Signature cards are to be produced.
2. Signature cards are to be produced.
3. All documents requested are to be produced.
4. All documents requested are to be produced.
5. Largely duplicative of No. 6, and documents are limited to the same extent as No. 6.
6. Caferoglu's Separate Statement states: "Cross-Complainants' specific objection [to Request No. 6] is to the "Know Your Customer" reference. [Caferoglu] is open to withdrawing that reference and could limit this request to corporate resolutions, signature cards, account authorization and modification forms, and officer designations. Accordingly, the Court will limit Request No. 6 to corporate resolutions, signature cards, account authorization and modification forms, and officer designations.
7. Documents sufficient to show the initiator or final approver of the identified payments are to be produced.
8. Any dual or multiple user signature cards are to be produced.

As to Request Nos. 9-13, the motion to quash is GRANTED.

Mr. Caferoglu has not adequately explained how monetary thresholds, internal bank restrictions, the account closing documents, or the recipient(s) of the funds at closing, is directly relevant. The same is true as to Category No. 13 (IRS/ERTC). Bank of America need not produce any documents responsive to Request Nos. 9-13.

The parties shall meet and confer and prepare and submit, for the Court's review and signature, a Protective Order that will govern documents produced by Bank of America.

Bank of America shall not produce any documents until a Protective Order is in place. No person may use any document(s) produced by Bank of America for any purpose other than for litigation of this case.

Exercising its discretion, all sanctions requests are DENIED.

Both parties share some responsibility for the lack of any real meet and confer. The Court finds, under the circumstances, that monetary sanctions are not warranted.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 6

25-CIV-02273 MIRAY YARASIR VS. DOUBLE AA CORPORATION, ET AL

MIRAY YARASIR
DOUBLE AA CORPORATION

ROBERT F BUZZARD
VASTI MONTIEL

Plaintiff's Motion for Protective Order

TENTATIVE RULING:

Plaintiff Miray Yarasir's motion for a protective order is DENIED. Defendant Double AA Corporation's and Hyiat Aish's request for sanctions is GRANTED, in part, and DENIED, in part.

FACTUAL BACKGROUND

On December 18, 2025, Defendants served Plaintiff with a notice of deposition, to be held on March 2, 2026. (Montiel Decl. at ¶7). Two months later, on February 18, 2026, Plaintiff informed Defendants that a Turkish interpreter was needed for the deposition. (Montiel Decl. at ¶8.) Defense counsel was surprised by this request, given Plaintiff's facility with the English language during her employment for Defendant Double AA, and because her written discovery responses attested that, while she "prefers Turkish," she writes and speaks English "with ease." (*Id.*, ¶ 8, Ex. C, Plaintiff's Responses to Interrogatories, Set One, Nos. 2.9, 2.10.) Plaintiff's discovery responses had not been prepared with the assistance of an interpreter. (*Id.*) Defense counsel proposed to accommodate an interpreter in exchange for Plaintiff stipulating that the deposition may exceed the standard seven hours (*Id.* at ¶9; Buzzard Decl., Ex. A, Email Exchange re: Interpreter.) Defense counsel also stated an expectation that Plaintiff cover payment and logistics for the interpreter, given her discovery responses stating that she can read, write, and speak English "with ease.") (*Ibid.*) Plaintiff's counsel refused to extend the time for the deposition, and the parties proceeded to the deposition with an interpreter. (Montiel Decl., ¶10.)

At the deposition, Defense counsel did not object to Plaintiff's use of an interpreter. (See Montiel Decl., Ex. A, Deposition Transcript.) After giving admonitions, Defense Counsel asked a series of questions related to a pre litigation demand letter. (Montiel Decl. at ¶11, Ex. A pp. 7-17.) Then, Defense Counsel asked: "*Do you believe that you are incapable of expressing yourself in the English language?*" (*Id.* at 18:8-9.) Plaintiff's counsel objected on the basis that Plaintiff's right to testify through an interpreter is not a proper subject for examination and stated "*I instruct my client not to answer any further questions on this topic as they're harassing.*" (*Id.* at 18:10-25.) Defense Counsel repeated her question after the break, and Plaintiff's Counsel once again instructed his client not to answer and requested a break while the question was pending. (*Id.*, at 19:2-25.)

After the break, Defense Counsel introduced Plaintiff's form interrogatory responses as Exhibit 2. (*Id.*, at 20:2-5.) Directing Plaintiff to her responses to Form Interrogatories 2.9 and 2.10, Defense Counsel asked: "*So it says that you can speak, read and write English with ease, correct?*" (*Id.*, at 20:2-21.) Plaintiff responded, "That is correct." (*Id.*, 21:4.) Defense counsel next asked, "*You said that you could speak English with ease and you can read and write English with ease under penalty of perjury, correct?*" (*Id.* at 21:6-8.) Plaintiff's Counsel instructed his client not to answer. (*Id.*, at 21:14-15.) Defense Counsel then asked if Plaintiff hired translator to review her discovery responses. (*Id.* at 21:23-24.) Plaintiff's counsel again objected, characterized the questioning as harassing, and threatened to suspend the deposition. (*Id.*, at 21:25 – 22:4.) Plaintiff refused to answer the question. (*Id.*, at 22:8-9.) Defense Counsel then asked: "On February 12th, 2025, you gave a one hour and minute interview to police, correct?" (*Id.*, at 22:10-11.) Plaintiff's Counsel immediately suspended the deposition over Defense Counsel's objections. (*Id.*, at pp. 22-23.)

LEGAL ANALYSIS

The civil discovery framework broadly authorizes the discovery of "any matter, not privileged, . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.010.) "For discovery purposes, information is relevant if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement." (*Gonzalez v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546, internal quotations and emphasis omitted.) Moreover, "irrelevance alone is an insufficient ground to justify preventing a witness from answering a question posed at a deposition." (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1014, *disapproved of on other grounds by Maniago v. Desert Cardiology Consultants' Medical Group, Inc.* (2026) 20 Cal.5th 91.)

In *Stewart*, the Court of Appeal explained that under Code Civ. Proc. § 2025 contemplates that deponents not be prevented from answering a question unless it pertains to a privileged matter or "the examination is being conducted in bad faith or in a manner that unreasonably annoys, embarrasses, or oppresses that deponent or party." (*Stewart, supra*, 87 Cal.App.4th at 1014-15.)

Separately, Evid. Code § 752(a) provides:

When a witness is incapable of understanding the English language or is incapable of expressing himself or herself in the English language so as to be understood directly by counsel, court, and jury, an interpreter whom the witness can understand and who can understand the witness shall be sworn to interpret for the witness.

Plaintiff's motion for a protective order arises from questioning by Defense counsel at Plaintiff's deposition regarding Plaintiff's English language proficiency, prompted in part by Plaintiff's stated need for a Turkish translator at her deposition.

Plaintiff requests that this Court issue a protective order:

- (a) Prohibiting Defendants and their counsel from questioning Plaintiff at any resumed deposition, or at trial, concerning her English-language abilities, her use of a Turkish interpreter, or the legitimacy or necessity of her interpreter, including but not limited to questions about whether Plaintiff is “incapable of expressing herself in the English language,” questions about her responses to form interrogatories regarding her language abilities, questions about whether she hired a translator to review discovery responses, and questions about prior interviews conducted in English;
- (b) Ordering that any resumed deposition of Plaintiff shall proceed with the assistance of a certified Turkish interpreter, without objection or interference by Defendants or their counsel;
- (c) Ordering that Defendants and their counsel refrain from any further conduct at Plaintiff’s deposition that is designed to annoy, embarrass, or oppress Plaintiff within the meaning of Code of Civil Procedure section 2025.420; and
- (d) Granting such other and further relief as the Court deems just and proper, including the reservation of Plaintiff’s right to seek monetary sanctions under Code of Civil Procedure section 2025.420, subdivision (h).

1. Plaintiff’s Counsel Had No Valid Basis to Instruct Plaintiff Not to Answer Relevant, Non-harassing Questions Concerning Her English Proficiency

Here, Plaintiff argues that her counsel’s instruction not to answer questions about her English language abilities were warranted because defense counsel was conducting the examination in a manner that was unreasonably annoying, embarrassing, or oppressive to Plaintiff. (MPA, at 11:22-28, 12:19-27.)

Plaintiff alleges that Defense counsel’s questioning was designed to annoy, embarrass, and oppress Plaintiff. (*Id.*, at 8:24 – 10:8.) In support of that contention, Plaintiff notes that:

- Defense counsel previously stated via email her intent to examine Plaintiff on her English language abilities;
- The questioning served no legitimate discovery purpose;
- Defense counsel persisted in this line of questioning despite repeated objections and warnings; and
- Defense counsel mischaracterized Plaintiff’s interrogatory responses.

(*Ibid.*) Plaintiff further explains Plaintiff, a Turkish immigrant who has lived in the United States for six years, “was subjected to repeated questioning designed to suggest that her need for a Turkish interpreter was illegitimate and that she was being dishonest about her language abilities.” (*Id.*, at 11:22-25.) Plaintiff contends that “[t]he intimidating and humiliating nature of this conduct is self-evident.” (*Id.*, at 11:27-28.)

The Court disagrees. The harassing nature of the Defense counsel's conduct is not evident in deposition transcript, nor in light of any context provided by Plaintiff.

After a line of questioning about Plaintiff's demand letter, Defense counsel asked Plaintiff: "Do you believe that you are incapable of expressing yourself in the English language?" (Montiel Decl., Ex. A, 18:8-9.) Plaintiff's counsel objected on the basis that Plaintiff's right to testify through an interpreter is not a proper subject for examination and stated "I instruct my client not to answer any further questions on this topic as they're harassing." (*Id.*, at 18:10-19.)

It is unclear how Plaintiff's counsel finds this question harassing. In fact, the question directly tracks the statutory language regarding interpreters for witnesses:

When a witness is incapable of understanding the English language or is ***incapable of expressing himself or herself in the English language*** so as to be understood directly by counsel, court, and jury, an interpreter whom the witness can understand and who can understand the witness shall be sworn to interpret for the witness.

(Cal. Evid. Code, § 752, subd. (a) [emphasis added].) Regardless, it was actually unreasonable for Plaintiff's counsel to conclude that the line of questioning was harassing after one lone question. The fact that parties disagreed via email prior to the deposition on the propriety of questions related to English proficiency does not make the line of questioning harassing. Defense counsel's emails state an intent to examine Plaintiff on this issue but do not reflect an intent to harass Plaintiff, nor is the tone of Defense counsel's emails harassing or otherwise unreasonable. (See Buzzard Decl., Ex. A.)

After the parties went off record for one minute, Defense counsel repeated the question and Plaintiff's counsel again instructed Plaintiff not to answer. (Montiel Decl., Ex. A, 19:2-15.) After a short recess, Defense counsel then introduced Plaintiff's responses to form interrogatories as Exhibit 2 and asked Plaintiff if it was correct that, in her responses to Nos. 2.9 and 2.10, Plaintiff stated that she "can speak, read and write English with ease." (*Id.*, at 20:2-21.) Plaintiff answered, "that is correct." (*Id.*, at 21:4.) Defense counsel then asked if Plaintiff made those interrogatory responses under penalty of perjury. (*Id.*, 21:6-8.) Plaintiff's counsel objected, stating, "These questions are simply designed to harass the plaintiff and if another question is asked on this line of questioning, I will suspend, I'll direct my client not to answer." (*Id.*, 21:12-15.)

Interrogatories are admissible for impeachment purposes. When a deponent's previous discovery responses appear inconsistent with their current conduct or testimony, the discrepancy serves as a proper basis for questioning. Further, the issue Plaintiff's English proficiency is relevant not only to Evidence Code § 752(a), but also as to her interrogatory responses – both on the topic and generally, as Plaintiff's responses were apparently not made with the assistance of an interpreter. Defendants' questioning was not harassing in substance or tone. It was therefore improper for Plaintiff's counsel to instruct Plaintiff not to respond.

Defense counsel next asked if Plaintiff hired a translator to review her discovery responses, and Plaintiff's counsel repeated the same objection, instructing Plaintiff not to answer. (*Id.*, at 21:23 – 22:9.) Defense counsel then asked: "On February 12th, 2025, you gave a one hour and 26 minute interview to police, correct? (22:10-11.) Plaintiff's counsel responded: "Objection, harassing, we'll suspend." (22:13-14.)

Given Plaintiff's stated need for a translator at her deposition, it was relevant for Defendant to ask if Plaintiff reviewed her previous discovery responses with a translator. The question is not harassing and Plaintiff's counsel had no legitimate basis to instruct Plaintiff to not respond. Separately, it was entirely unreasonable for Plaintiff's counsel to suspend the deposition when Defense counsel brought up Plaintiff's interview with police. The line of questioning to that point was not harassing and, further, Plaintiff's counsel did not even know where the line of questioning was on the police interview was going. Plaintiff's conduct during a police interview for the subject incident is clearly relevant, discoverable, and a proper area for inquiry.

Accordingly, the Court finds that Plaintiff's counsel had no basis to instruct Plaintiff to not answer questions asked by Defendant regarding her English language proficiency at her deposition and that Plaintiff's motion is without merit.

Plaintiff's motion for a protective order is DENIED in its entirety.

The Court further ORDERS that parties shall meet and confer to set a date to reopen Plaintiff's deposition, to be held within 21 days of notice of entry of this order, unless a later date is mutually agreed upon. Given Plaintiff's request and/or need for an interpreter, Defendant shall be permitted to depose Plaintiff for a second day, if needed, not to exceed 14 hours of total deposition time. Prior to reopening the deposition, the parties shall determine a mutually agreeable date for when the deposition will be continued to a second day, if needed. The Court expects that any unforeseen issues with scheduling will be resolved amicably.

2. Sanctions Are Warranted

"The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.420, subd. (h).)

Defendant requests sanctions of \$12,740.00 in attorney's fees incurred in preparing this motion, which includes \$7,320 in associate time (12 hours at \$600 per hour), \$3,300.00 in senior associate time (3.7 hours at \$900 per hour), and \$2,090.00 in partner time (1.9 hours at \$1,100 per hour). (Montiel Decl., ¶ 23, Ex. H, Timeslip Reporting.)

Defendant further requests sanctions in the amount of the following costs: \$620.00 invoiced for the videographer for the suspended deposition; \$1,064.48 in Court Reporter fees and for the suspended deposition transcript; and \$2,150.00 for reopening the suspended deposition.

The Court finds Defendant's requests for attorney's fees and costs related to the suspended deposition to be reasonable and supported by Defense counsel's declaration. However, the Court declines to include costs for reopening the deposition, as those costs have not yet been incurred and, more importantly, exceed reimbursement for the suspended deposition.

Plaintiff argues that sanctions are not warranted because the motion was substantially justified. Plaintiff's argument effectively rests on the same arguments as the motion: that the deposition transcript shows demeaning questioning and that pre-deposition correspondence likewise indicated an intent to harass. The Court rejects those arguments and finds that Plaintiff had no substantial justification for bringing this motion.

Accordingly, Defendant's request for sanctions is GRANTED in the amount of \$14,424.48, against Plaintiff Miray Yarasir and her counsel of record, Ayala, Morgan & Buzzard Attorneys At Law, jointly and severally, to be paid within ten (10) days of notice of entry of this order.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 7

26-CIV-05127 ANCHORCRAFT CO. VS. WAVE2WAVE SOLUTION CORPORATION, ET
AL

ANCHORCRAFT CO.
WAVE2WAVE SOLUTION CORPORATION

J. CRAIG CRAWFORD
AARON M. LEVINE

Plaintiff's Application for Right to Attach Order and Order for Issuance of Writ of Attachment

TENTATIVE RULING:

Plaintiff Anchorcraft Co.'s Application for Right to Attach Order and Order for Issuance of Writ of Attachment is DENIED, as follows:

Evidentiary Objections

Defendants object to portions of the Crandon Decl. and Supp. Crandon Decl. in support of Plaintiff's Application. Defendants' objections No. 39 and 43 are SUSTAINED based on hearsay pursuant to Evidence Code section 1200. Defendants' remaining evidentiary objections are OVERRULED.

Writ of Attachment

Before the court can reach the issue of whether a writ of attachment should issue, a plaintiff must establish that the underlying claim is one upon which attachment may issue. Under the applicable statute, attachment is available only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount is a fixed or readily ascertainable amount not less than \$500, exclusive of costs, interest, and attorney's fees. (Code Civ. Proc. section 483.010 subd. (a).)

Once the plaintiff has established that a claim qualifies for attachment, the court must find all four of the following elements before issuing a right to attach order: (1) the claim upon which the attachment is based is one upon which an attachment may be issued; (2) the plaintiff has established the probable validity of the claim upon which the attachment is based; (3) the attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based; and (4) the amount to be secured by the attachment is greater than zero. (Code Civ. Proc. section 484.090 subd. (a).) These four requirements are mandatory prerequisites to issuance of a writ. (*California Retail Portfolio Fund GMBH & Co. KG v. Hopkins Real Est. Grp.* (2011) 193 Cal. App. 4th 849, 122 Cal. Rptr. 3d 614; *Park v. NMSI, Inc.* (2023) 96 Cal. App. 5th 346, 314 Cal. Rptr. 3d 306.)

Probable validity is the most substantively demanding element of the analysis, and essentially equates to a preponderance of the evidence standard in which "it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim." (Code Civ. Proc. section 481.190.) The burden of establishing probable validity falls squarely on the plaintiff. (*Park v. NMSI, Inc.* (2023) 96 Cal. App. 5th 346.) Courts assess this based on the pleadings and other papers in the record, though upon good cause shown, the court may also receive and consider additional oral or documentary evidence at the hearing. (Code Civ. Proc. section 484.090.) On appeal, a trial court's finding on whether a plaintiff established probable validity is reviewed for substantial evidence. (*Santa Clara Waste Water Co. v. Allied World Nat'l Assurance Co.* (2017)18 Cal. App. 5th 881.)

When a dispute is subject to ongoing arbitration, California requires an additional showing beyond the standard attachment requirements. Parties to arbitration proceedings may obtain a writ of attachment or other provisional remedy in connection with an arbitrable controversy only upon the ground that "the award to which the applicant may be entitled may be rendered ineffectual without provisional relief." (Code Civ. Proc. section 1281.8 subd. (b).) This ineffectual relief requirement can be satisfied by showing either insolvency or the inability to pay damages, as these constitute classic types of irreparable harm. (*California Retail Portfolio Fund GMBH & Co. KG v. Hopkins Real Est. Grp.* (2011) 193 Cal. App. 4th 849.) Insolvency in this context is defined as either an excess of liabilities over assets or the inability to meet obligations as they mature in ordinary business course, with the second definition being the preferred one where there is no statutory definition. (*Id.*, at 859-860, citing *Stark v. Shaw* (1957) 155 Cal.App.2d 171, 179.)

Claim on Which Attachment May Issue

Plaintiff's claim is a commercial money claim under an express written contract and is unsecured. (Crandon Decl., ¶30, Exh. 1.) The claim is therefore one on which attachment may issue.

Probable Validity of Plaintiff's Claim

The parties entered into an Asset Purchase Agreement (the "APA") on August 4, 2025 relating to Defendant's structured-cabling business with Defendant Wave2Wave Solution Corporation as to Seller and Plaintiff Anchorcraft Co. as the Buyer. (Crandon Decl., ¶3, Exh. 1.) Plaintiff alleges that from September 2025 through early February 2026, Wave2Wave remitted approximately \$624,721.11, reconciled through a "Master Invoice Spreadsheet" maintained by Wave2Wave's outside bookkeeper. (Complaint, ¶¶22-23; Crandon Decl., ¶¶5-6.) Plaintiff further alleges that after Wave2Wave terminated the bookkeeper, with the last spreadsheet update on February 8, 2026, remittances largely stopped. (Complaint, ¶25; Crandon Decl., ¶7.) Plaintiff's CEO and majority shareholder Mark Crandon declares that \$645,443.25 remained unremitted as of June 23, 2026, corresponding to 117 specific invoices documented by customer, purchase order, invoice number, amount, California sales tax, net amount due, payment-receipt evidence, and receipt date, plus \$21,275.92 in interest. (Crandon Decl., ¶¶11-12.)

Defendants oppose the Application on three grounds: that Anchorcraft has not shown an award would be ineffectual absent attachment, that the application lacks admissible evidentiary support, and that Anchorcraft cannot establish probable validity.

Defendant's central defense regarding the probable validity of Plaintiff's claims is that under the terms of the APA, a Post-Closing Reconciliation was effectively a condition precedent to Defendant's duty to remit payment. The probable validity of Plaintiff's claim therefore turns on whether the joint reconciliation term contained at section 2.15 of the APA is a condition precedent to Wave2Wave's duty under section 2.9(2) to remit received customer payments. Section 2.9(2) states "A/R and A/P for work or sales occurring after the Closing Date shall be the responsibility of the Buyer." (See Crandon Decl., ¶3, Exh. 1.) That language does not condition remittance of payment on reconciliation, and instead assigns post-closing receivables to the Buyer. Based on the plain language of the contract, Plaintiff is more likely than not to obtain a judgment on the claim.

Award Ineffectual Without Provisional Relief

Plaintiff Anchorcraft Co. and Defendant Wave2Wave Solution Corporation are parties to an arbitration which was initiated on June 25, 2026 with the American Arbitration Association. (McCauley Decl., ¶2.) Before a writ of attachment may issue, Plaintiff must therefore show that the award to which the Plaintiff may be entitled may be rendered ineffectual without provisional relief. (Code Civ. Proc. section 1281.8 subd. (b).) In support of a finding that an award would be ineffectual without provisional relief, Plaintiff relies primarily on a text message which states: "reviewing the sales tax within invoices today and I will work on the payment schedule to you right after. Sorry for the delay, we are a bit tight this month." (Crandon Decl., ¶¶15-16, Exhs. 8-9.) While this text message is subject to various interpretations, it is not conclusive. In contrast, Defendants provide a declaration from Defendant Wave2Wave's CEO that "Wave2Wave regularly generates substantial annual revenue and maintains assets and resources sufficient to meet its ordinary business obligations" and "continues to pay vendors, employees, contractors, and other obligations in the ordinary course of business." (Wang Decl., ¶25.)

On this record, Plaintiff has not demonstrated that an award may be ineffectual without provisional relief. The Application is accordingly DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

10:00 AM

Line 8

25-CIV-07292 MARIO FAUSTO, ET AL VS. OLGA ALEXANDER, ET AL

MARIO FAUSTO
OLGA ALEXANDER

PRO SE
YANG WENYAO

Defendants Ole Ventures, Inc and Ole Travel, Inc.'s Motion to Quash Service of Summons (C.C.P. § 418.10 and to Set Aside Entry of Default (C.C.P. §§ 473(b), 473(d), 473.5)

TENTATIVE RULING:

Defendants Ole Ventures, Inc and Ole Travel, Inc.'s Motion to Quash Service of Summons and to Set Aside Entry of Default are GRANTED in part and DENIED in part.

Summary of Facts

Per the Court's registry, this action was initiated on September 17, 2025 (Complaint, filed /17/2025), with a First Amended Complaint ("FAC") then filed on December 10, 2025 (FAC, filed 12/10/2025). On April 14, 2026, Plaintiff filed four separate Proofs of Service ("POS") of Summons on corporate Defendants Ole Ventures, Inc., Ole Travel, Inc., and two individuals who are not part of this motion. POS's filed 4/14/2026)

Both of the POS on the corporate defendants are largely identical; to wit, they claim service upon Patricia Tregear as Agent for Service for both corporate defendants on March 11, 2026, both by substitute service on a "Jane Doe" with description attached, and with box 5.b.(1) marked which reflects service on "a person at least 18 years of age apparently in charge at the office of usual place of business of the person to be served. as a person apparently in charge. I informed him or her of the general nature of the papers." POS's filed 4/14/2026. Both POS's are signed by Donald Schlipp a registered process server, Registration No. 496 in San Mateo County. *Id.* The address listed on both POS, is "44 Visitacion Ave. 200 Brisbane, CA 94005." *Id.* On April 30, 2026, defaults were then entered against both corporate defendants.

Legal Discussion

When a defendant challenges the court's personal jurisdiction on the ground of improper service of process, the burden is on the plaintiff to prove the facts establishing effective service. *Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413. Evidence Code Section 647 also provides:

The return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return.

In this case, we have two POS's by a registered process server, so there is a presumption of valid service on both of the corporate defendants. As the relevant corporate history for both is slightly different, each will be addressed separately.

Ole Ventures, Inc. – Motion to Quash

Ole Ventures, Inc. filed a Statement of Information with the Secretary of State on March 25, 2024, wherein it listed Patricia Tregear as the agent for service of process at the address of 44 Visitacion Avenue, Suite 200, Brisbane, CA 94005 (hereinafter the "Subject Address"). Fausto Decl., Exh. 3. However, as defendant points out, Plaintiff has also put before the Court this company's Certificate of Surrender filed with the Secretary of State on December 22, 2025. Fausto Decl., Exh. 1. While the Certificate of Surrender still lists the Subject Address as a "mailing address," it then automatically was no longer a valid address for service on the designated agent. The Certificate of Surrender clearly outlines:

- b) The corporation revokes its designation of agent for service of process in California.
- c) The corporation consents to process against it in any action... may be served upon the California Secretary of State."

Certificate of Surrender, Fausto Decl, Exh. 1.

Undisputedly, Plaintiff only attempted a sub-serve at the Subject Address, on a date after the Certificate of Surrender, i.e. on a date where Ole Ventures, Inc. no longer had a valid agent for service of process nor a valid address for personal or sub-service on such an agent. Plaintiff has not met the burden of establishing valid service, the default on Ole Ventures, Inc. is set-aside, and the Proof of Service on Ole Ventures, Inc. filed on April 14, 2026, is quashed.

Ole Travel, Inc. – Motion to Quash

Ole Travel, Inc. filed its Statement of Information with the Secretary of State on January 27, 2026, where it listed Patricia Tregear as the agent for service of process at the address of 44 Visitacion Avenue, Suite 200, Brisbane, CA 94005 (hereinafter the "Subject Address"). Fausto Decl., Exh. 2. Defendant's opposition essentially concedes this point, and nowhere in Defendant's opposition is it raised that this Statement of Information was not valid on the date of service per the POS on file.

Instead, Defendant provides a Declaration by Ms. Tregear asserting (1) she was not present at the Subject Address on the date of service of March 11, 2026, (2) she was not personally served, (3) that she did not authorize anyone to accept service, and that (4) Ole Travel, Inc. had at the time only limited operations at the subject address. Tregear Decl., filed 7/6/2026. None of these assertions carry the day. An agent does not have to be personally present, or personally served as sub-service is allowed. An agent is not required to authorize someone to accept service for sub-service to be valid, and the limited operation of this business is irrelevant under these circumstances. Ms. Tregear was and apparently still is the agent for service for Ole Travel, Inc., she was sub-served at the listed address as the agent. The POS on Ole Travel, Inc. is valid, and is therefore not quashed.

As a consequence, the Court now addresses Ole Travel, Inc.'s related request for relief from default.

Ole Travel, Inc. – Motion to Set Aside Default

Legal Standard

A court may relieve a party from any proceeding taken against it through its “mistake, inadvertence, surprise, or excusable neglect” on “any terms as may be just.” (Code of Civ. Proc. (“CCP”), § 473, subd. (b).) The moving party must show that the act or omission resulting in the default is one that a reasonably prudent person might have committed under similar circumstances. (*Renteria v. Juvenile Justice, Dept. of Corrections & Rehabilitation* (2006) 135 Cal.App.4th 903, 910.) This showing must be made by specific facts under a preponderance of the evidence standard, and without an attorney affidavit of fault, relief is discretionary. (*Lorenz v. Commercial Accept. Ins. Co.* (1995) 40 Cal.App.4th 981, 989; and *Hopkins & Carley v. Gens* (2011) 200 Cal.App.4th 1401, 1410.)

In addition, the party must show that the motion for relief was filed “within a reasonable time, in no case exceeding six months” after the default is entered. (CCP § 473, subd. (b); *Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13, 28.) Whether a motion for relief was filed within a reasonable time depends on the circumstances of the case, but a grant of relief requires a showing of the moving party’s diligence in seeking relief upon discovery of the default. (*Stafford v. Mach* (1998) 64 Cal.App.4th 1174, 1181.)

However, “where the party in default moves promptly to seek relief, and the party opposing the motion will not suffer prejudice if relief is granted,” only “very slight evidence will be required to justify a court in setting aside the default.” (*Brochtrup v. INTEP* (1987) 190 Cal.App.3d 323, 329 [quotation marks removed].) The party opposing relief has the burden of showing prejudice. (*Aldrich v. San Fernando Valley Lumber Co.* (1985) 170 Cal.App.3d 725, 740.) “Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.” (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 980 [quotation mark omitted].)

Here, the POS on Ole Travel, Inc. was filed on April 14, 2026, with a default entered on April 30, 2026. Defendant then filed this motion to quash and set aside default on July 6, 2026, roughly two months later. The motion is timely and was brought within a reasonable time.

Discussion

On the merits, both parties spend only minimal argument on this issue. Plaintiff largely banked on prevailing on the motions to quash arguing the motion to set aside default “Rises Or Falls” with Defendants’ service challenge. Opp., pg. 9, lines 21-22. Plaintiff provides no other argument. Defendant’s argument is also minimal, essentially that the Defendant did not receive “actual notice” (Mtn. pg. 12, line 23), that there was no attempted evasion of service and Plaintiff will not be prejudiced. However, the Declaration by the CEO of Ole Travel, Inc. provides the more relevant details in:

“The Corporate Defendants first became aware of this action in approximately April 2026 after learning of the case through the Odyssey court docket.”

“The Corporate Defendants’ lack of actual notice was not caused by any intentional avoidance of service or by inexcusable neglect”

Defendant then promptly engaged an attorney to bring the present motion. Defendant meets its burden and there is zero showing of prejudice to the Plaintiff. Thus the Motion to Set Aside Default is GRANTED, and the default against Ole Travel, Inc. is set aside.

Under the code, Defendant was required to submit a copy of its Answer with this motion. CCP § 473.5(b). Defendant indicates a proposed Answer was submitted. Motion, pg. 13, line 5, and the Proof of Service for this motion filed on July 6, 2026 does list a proposed Answer as being served on Plaintiff's counsel. However, no such proposed Answer is on file (typically this should be attached to defense counsel's declaration, of which there is none).

Defendant Ole Travel, Inc. is to separately file its proposed Answer (that was served on Plaintiff's counsel on July 6, 2026), within 15 days from service of the Order after hearing. CCP § 418.10(b).

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.
